

24LBCV00861 24LBCV00861

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-23

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Case Number: 24LBCV00861 Hearing Date: June 23, 2026 Dept: S27

Plaintiffs, Jose Guillermo Cornejo

Alas and Cristal Escoto Cornejo filed this action against Defendant, American

Honda Motor Co., Inc. for violations of Song-Beverly.

On 9/29/25, Defendant noticed

Plaintiffs' depositions and demanded vehicle inspection. On 10/06/26, Plaintiffs served objections to

all three, indicating they were not available on the noticed dates. On 3/20/26, Defendant filed these motions to

compel.

With respect to the motions to

compel deposition, the Court finds Defendant failed to meet and confer as

required by CCP §2025.450(b)(2).

§2025.450(b)(2) requires the moving party to meet and confer by

"inquiring about the nonappearance" prior to filing a motion. While that standard does not technically make

a lot of sense in this context, where the plaintiffs served an objection based

on unavailability, the Court finds the Code still requires SOME attempt to

resolve the issue prior to filing a motion.

Defendant did absolutely nothing.

Notably, upon receipt of the motion, Plaintiffs have offered dates for

the depositions. The Court is hopeful

the depositions have gone forward and/or are scheduled such that the relief

sought is moot.

If the motions to compel deposition

are not moot, the parties must appear at the hearing and explain what attempts

to resolve the issue have been made.

With respect to the vehicle

inspection, a motion to compel inspection is technically not the correct motion

under the circumstances. A motion to

compel inspection is governed by CCP §2031.310 and is ripe if and only if the

responding party promises to produce and then does not produce. Where, as here, the responding party served

objections, the propounding party was required to meet and confer and then file

a motion to compel further responses if the issues remained unresolved. Again, Plaintiffs indicate they have provided

a proposed date for inspection. The

Court is hopeful the parties have resolved the issues. If they have not done so, they must appear

and explain the status of the dispute at the hearing.

The Court notes that neither party

seeks sanctions, and none are imposed.

The Court also notes that this is

the fifth discovery motion hearing date the parties have had on calendar in

this case. The 7/06/26 trial date is

firm, and the parties are expected to resolve all disputes prior to trial

without the need for additional law and motion practice.

Defendant is ordered to give

notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. If a party submits on

the tentative, the party's email must include the case number and must identify

the party submitting on the tentative. If any party does not submit on the

tentative, the party should make arrangements to appear remotely at the hearing

on this matter.